Re: Public Records Request — Personal ALPR Data

From Brian C [redacted] >
To Kelly O'Keefe [redacted]
Date 2026-03-05 09:39

Kelly,

Thank you for your responses. I have a few clarifications regarding the scope of my original request.

My original request included my vehicle description ([redacted]). This is an uncommon color and vehicle combination -- sufficiently distinctive that a vehicle fingerprint search would return results effectively specific to my vehicle. To the extent SMPD's Flock system supports searching by vehicle attributes, that search falls within the scope of my original request and should be processed accordingly.

My original request should also be understood to include any vehicle journey or pursuit results generated from my plate, including detections captured through non-ALPR devices, such as Flock Picard edge computing devices or other video-only hardware, that identify my vehicle through physical attributes rather than a plate read. Those detections are not ALPR information under Civil Code § 1798.90.5 and are not subject to the denial issued under § 1798.90.55(b).

For any category withheld, I am requesting at minimum a count of detections matching my plate or vehicle description, and a count of access log entries associated with my plate. Aggregate counts do not constitute ALPR information under § 1798.90.5.

On the access log denial -- I understand the § 7923.600 reasoning, but there have been a number of documented cases where Flock was used for personal rather than investigative purposes, and in those cases the access logs were the only way anyone found out. California DOJ's own misuse data shows non-investigative database access happens regularly across law enforcement agencies statewide. I'd also note that the audits produced so far don't appear to cover search or access log review. Given all that, I'd appreciate it if the Department could take another look at whether § 7923.600 is the right fit here.

If any portion of this request is denied, please fulfill the remaining portions and provide the specific statutory basis for each denial separately.

-brian

On 2026-03-05 06:44, Kelly O'Keefe wrote:

> Hi Brian,
>
> The condor cameras do not have LPR data and therefore do not have query information- I can not search which vehicles were captured on those cameras.
>
> The Department does maintain access logs through Flock.
>
> Flock should only be accessed for investigative purposes and therefore the records of access for a specific plate would be restricted under Cal. Government Code section 7923.600.
>
> There is no existing process for verifying what ALPR data the Department holds on specific vehicles.
>
> -----Original Message-----
> From: Brian C [redacted]
> Sent: Friday, February 27, 2026 1:05 AM
> To: Kelly O'Keefe [redacted]
> Subject: Re: Public Records Request — Personal ALPR Data
>
> Kelly,
>
> Thank you for the follow-up. My previous email addressed the distinction between third-party requests and data subject requests, which I don't believe was responded to — I won't repeat it here.
>
> I'd like to clarify that my request also covers two additional categories of records beyond ALPR detections, neither of which is subject to Section 1798.90.55(b):
>
> First, SMPD's Flock network includes Video Camera devices (listed as Condors and others in the Camera Manager) that capture video footage. I am requesting any video recordings from those cameras that include my vehicle. Section 1798.90.55(b) applies only to "ALPR information" as defined in Civil Code § 1798.90.5. Video footage from non-ALPR cameras is not ALPR information and is not subject to that restriction.
>
> Second, my request should also encompass any search or access logs related to my vehicle. Access logs are administrative records

documenting who queried the system and when — they are not themselves ALPR information, and Section 1798.90.55(b) would not apply to them. Several California agencies produce anonymized versions of these logs publicly.

Two questions from my previous email were also not addressed:

1. Does SMPD maintain access logs as required by Civil Code § 1798.90.52?

2. Is there any process by which a San Mateo resident can verify what ALPR data the department holds about them, or confirm whether their data has been accessed and by whom?

If any portion of this request is denied, please fulfill the remaining portions and provide the specific statutory basis for each denial separately.

Thank you,
Brian

On 2026-02-26 15:07, Kelly O'Keefe wrote:

Hello Brian,

There is nothing in Section 1798.90.55(b) that limits its applicability to only agency-to-agency transfers. Instead, Section 1798.90.55(b) prohibits the release of ALPR information only as otherwise permitted by law. If you are aware of any legal authority that specifically allows the release of the requester's ALPR information, please forward for the City's review.

Thank you,

Kelly

From: Brian C <[redacted]
Sent: Thursday, February 26, 2026 1:52 PM
To: Kelly O'Keefe [redacted]
Subject: Re: Public Records Request — Personal ALPR Data

Hi Kelly,

Thank you for the prompt response.
I want to clarify the nature of my request, because I believe it may have been categorized in a way that doesn't fully apply.

§ 1798.90.55(b), which you cited, restricts agency-to-agency and agency-to-third-party transfers. Whether it applies when the requestor is the data subject is a different question — and one the ACLU case did not address. That case involved the ACLU and EFF requesting bulk ALPR scan data for millions of vehicles from LAPD and LASD. The court's privacy balancing under § 6255(a) was based on the risk of exposing the movements of millions of uninvolved people to a third party. My request is for records about my own vehicle only. The privacy interest the court found dispositive — protecting strangers' location data from third-party disclosure — does not apply when the requestor is the data subject. The court emphasized that the § 6255(a) balancing test is case-specific, and the facts here are materially different.

Additionally, I note that SMPD's own ALPR policy (Policy 463, Section 463.8) states that requests from non-law-enforcement agencies "will be processed as provided in the Records Maintenance and Release Policy (Civil Code § 1798.90.55)." This language implies a processing pathway exists for such requests — not an automatic denial.

I'd also note that my request referenced "all ALPR systems," but SMPD also operates Flock Condor cameras and other video surveillance equipment that may have captured images of my vehicle. Civil Code § 1798.90.55(b) applies specifically to "ALPR information" as defined in § 1798.90.5. Video surveillance footage that is not collected through an ALPR system would not fall under that restriction. To the extent any non-ALPR cameras captured footage of my vehicle, I'd like to understand what process applies to accessing that footage.

[redacted]

1. If a San Mateo resident wanted to verify what ALPR data SMPD holds about their vehicle, is there any process available to them?

2. Does SMPD maintain access logs for ALPR queries as required by Civil Code § 1798.90.52? If so, would those access logs — showing who queried my plate, when, and for what purpose — be subject to the same denial, or would those be handled differently?

3. For non-ALPR video surveillance systems operated by SMPD (including Flock Condor cameras), what is the process for a resident to request footage of their own vehicle?

I understand SMPD needs to protect the integrity of the ALPR system. I'm not asking for bulk data or information about other people's vehicles. I'd simply like to know what data exists about my own car and who has accessed it.

Thank you,
Brian

On Thursday, Feb 26, 2026 at 12:52 PM, Kelly O'Keefe [redacted] wrote:
Hello Brian,

Your request has been denied pursuant to Government Code 7927.705, as records prohibited from disclosure under federal or state law. In this case, Civil Code section 1798.90.55, subdivision (b) prohibits a public agency from selling, sharing, or transferring ALPR information, except to another public agency, and only as otherwise permitted by law.

In addition, your request been denied under the public interest exemption, as the public interest in releasing information on private vehicles is outweighed by the public interest in maintaining individual privacy. (Gov. Code 7922.000; California Constitution Article 1, Section 1; American Civil Liberties Union Foundation v. Superior Court (2017) 3 Cal.5th 1032, 1044).

Thank you,
Kelly

-----Original Message-----
From: Brian C[redacted]
Sent: Thursday, February 19, 2026 4:40 PM
To: Kelly O'Keefe
[redacted]
Subject: Public Records Request — Personal ALPR Data

Hi Kelly,

I hope you're doing well. Pursuant to the California Public Records Act (Government Code § 7920 et seq.), I am requesting records related to my own vehicles, across all ALPR systems operated or accessed by SMPD — including but not limited to Flock, PIPs, Vigilant, and NCRIC:

1. All ALPR detections of my vehicles — including the date, time, location (camera ID or address), and captured image for each detection

2. Access logs for records associated with my plates — including the date and time of each access, the username of the person who accessed the information, their organizational affiliation if applicable, and the stated purpose for the access, as maintained per Civil Code § 1798.90.52

I am the registered owner of the following vehicle(s):
[redacted]

For Flock, I'd like records from August 2023 (start of the program) through the present. For PIPs, Vigilant, and NCRIC, I'd like records going back as far as available, or to the start of SMPD's use of each system.

I'm sending this directly rather than through the PRA portal because the request contains my personal vehicle identification information,
[redacted]

which I'd prefer not to have in a public-facing system. I'm happy to provide a copy of my registration or other proof of ownership. Please let me know if there's a preferred format or process.

Thank you,
Brian

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[redacted]